

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

JISUN-LEE RACHEL KIM,

Petitioner

VS.

RAYMOND CHRISTIAN KIM,

Respondent

) Case Number: FDI-23-798921

) Hearing Date: June 4, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

REQUEST FOR ORDER SPOUSAL OR PARTNER SUPPORT, ATTORNEY FEES AND COSTS, ;
MOTION TO COMPEL FURTHER DISCOVERY RESPONSE, SANTION AND AWARD 100%
OMITTED ASSETS

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the
Court makes the following findings and orders:

A. Procedural History

- 1) Petitioner Jisun-Lee Rachel Kim (Wife) and Respondent Raymond Christian Kim (Husband)
married on 10/6/2001. Per the Petition for Dissolution filed 11/28/2023, the parties separated on
9/1/2023, for a marriage of 21 years and 10 months. The parties do not have minor children. Wife
is represented by attorney Christie Lee.
- 2) Per the Proof of Service of Summons, Husband was personally served with the Petition for
Dissolution and Summons on 1/11/2024. Husband has not filed a Response to the Petition.
Husband has also not filed any pleadings in this matter or appeared at any prior hearings to date.
However, based on the statements made in her most recent moving papers, Husband has been in
sporadic communication with Wife's attorney, although Wife's attorney states that Husband's
conduct in this litigation has been "characterized by absolute obstruction and total disregard for
his fiduciary duties."

1 3) At the prior 3/5/2024 hearing (per the Findings and Order After Hearing filed 5/21/2024), Judge
2 Tong adjudicated Wife's request for temporary spousal support and ordered Husband to pay Wife
3 \$3,474 per month in temporary spousal support effective 12/20/2023 based on Husband's salary
4 of \$16,000 per month (based on Wife's assertions that a prior W2 for Husband stated this
5 amount) and Wife's self-employment income of \$2,500 per month. The Court also ordered
6 Husband to pay Wife spousal support arrears of \$8,181 for the period 12/20/2023 – 2/28/2024, at
7 a rate of \$1,363.0 per month for 6 months.

8 4) Now on for hearing is Wife's Request for Order filed 3/27/2026. Wife states that Husband is a
9 "high-level banking executive with decades of experience at Wells Fargo, US Bank, California
10 Bank & Trust, and BMO." Wife states that Husband failed to provide a Schedule of Assets and
11 Debts and has concealed a \$240,000 investment portfolio and his current BMO executive
12 compensation records. Wife also states that Husband provided deficient responses to her Family
13 Law Form Interrogatories, Set One and Request for Production of Documents, Set One. Wife
14 further states that Husband failed to respond to a settlement proposal sent by her attorney on
15 10/22/2025. Wife asks the Court to:

- 16 a. Compel further responses to Family Law Form Interrogatories, Set One and Request for
17 Production of Documents, Set One
 - 18 b. Compel Husband to produce a completed Schedule of Assets and Debts (FL-142)
 - 19 c. Award Wife 100% of undisclosed community stocks / investments under Family Code
20 section 1101(h)
 - 21 d. Order Husband to pay \$22,735 in support arrears
 - 22 e. Order Husband to pay \$12,400 in attorney's fees sanctions under Family Code section
23 271 for fees incurred to engage in informal discovery efforts, draft settlement proposals,
24 communicate with Husband, draft formal discovery requests, draft meet and confer
25 letters, research and draft subpoenas (which were unproductive because Wife lacks the
26 specific account numbers for various accounts), make attempts to serve Husband who
27 Wife states evaded service, and draft the instant motion.
- 28 5) Per the Proof of Service filed 5/7/2026, Wife's Request for Order was personally served on
29 Husband on 5/3/2026.

6) Husband did not file a Responsive Declaration.

7) The Court notes there is a future hearing date set for 6/18/2026 in Dept. 404 on Wife's Order to Show Cause Re: Contempt filed 4/10/2026 wherein Wife alleges Husband failed to pay support arrears for the period 12/20/2023 – 2/28/2024 and failed to pay support for the period 10/5/2025 – 3/15/2026.

B. Findings and Order

1) The hearing on Wife's request to compel further responses to Family Law Form Interrogatories, Set One and Request for Production of Documents, Set One and Wife's request for sanctions related to her motion to compel is hereby continued to the discovery calendar on **Friday, 9/4/2026 at 1:30 PM in Dept. 405A.**

2) The Court finds, based on Wife's unrefuted assertions, that Husband owes Wife \$22,735 in total support arrears for the periods 12/20/2023 – 2/28/2024 and 10/5/2025 – 3/15/2026. Husband shall pay this amount to Wife in 6 installments of \$3,789 due by the 15th of each month commencing 6/15/2026. These payments shall be in addition to monthly temporary spousal support owed by Husband as set forth in the Findings and Order After Hearing filed 5/21/2024.

3) No later than 6/30/2026, Husband shall complete and serve on Wife's attorney a completed Schedule of Assets and Debts (FL-142), along with all required attached documents.

4) The Court's jurisdiction to adjudicate Wife's request that the Court award her 100% of undisclosed community stocks / investments under Family Code section 1101(h) is reserved for trial / final Judgment.

5) The Court finds good cause to award to Wife Family Code section 271 attorney's fees in the amount of \$2,600 for fees incurred for her attorney to locate Husband for service (1.5 hours x \$400 / hour) and for some of the fees incurred for Wife's attorney to draft this motion to pursue Wife's claims regarding support arrears, Husband's Schedule of Assets and Debts, and attorney's fees sanctions (5 hours x \$400 / hour). Husband shall pay to Wife the \$2,600 awarded here from his separate property no later than 7/15/2026.

6) The Court's jurisdiction to award additional attorney's fees sanctions related to Wife's motion to compel is reserved and will be addressed at the discovery hearing in Dept. 405A.

1 7) All other requests for attorney's fees sanctions by Wife set forth in the instant Request for Order
2 are denied without prejudice to Wife's ability to later file a need-based attorney's fee request.

3 8) Wife's attorney shall prepare the Findings and Order After Hearing.

4 9) **Preparation of Order:** If you are directed by the court to prepare the order after hearing – within
5 10 calendar days of the hearing you must either: (a) Serve the proposed order to the other
6 party/counsel for approval, and follow the procedures set forth in CA Rules of Court, Rule
7 5.125(c), or (b) If the other party did not appear or the matter was uncontested, submit the
8 proposed order after hearing directly to the court. Failure to submit the order after hearing within
9 10 days may allow the other party to prepare a proposed order and submit it to the court in
10 accordance with CA Rules of Court, Rule 5.125(d).